



FL lie# CCC1332184 CGC1527978
700 N. Wickham Rd #207
Melbourne, FL 32935
Office: (321) 430-ROOF
info@ROGSolidFlorida.com

Client(s) Name (1&2):

Date:

Address:

City / State:

Zip Code:

Email:

Home Phone:

Cell Phone:

Insurance Company:

Date of Loss:

Policy #:

Claim #:

IRREVOCABLE DIRECTION TO PAY & EQUITABLE LIEN ON INSURANCE PROCEEDS

I authorize *ROG Construction* to enter my property, and if applicable, furnish materials, supply all equipment and perform all labor necessary to perform the below listed Specified Services:

- ☐ Reconstruction of the Dwelling
- ☐ Roof, and/or Other Structures Construction
- ☐ Water Damage Emergency Dry-out
- ☐ Water Damage Air Quality Assessment
- ☐ Mold Mitigation
- ☐ Emergency Mitigation/Tarp/Tree Removal
- ☐ Other:

I. Irrevocable Direction to Pay

I hereby unequivocally authorize and irrevocably instruct Insurance Company, Attorney, Mortgage Company, and any other entity that may be in receipt of insurance proceeds for the above-mentioned claim, to direct payment of any insurance proceeds by way of distribution, settlement, judgments and/or verdict, payable for above "specified services" rendered by Contractor, its subsidiaries or sub-contractors, to be made payable directly and solely to ROG Construction. I agree that any portion of work, deductible(s), upgrades, depreciation, or additional work requested but otherwise not covered by insurance, is ultimately my responsibility. In the event the settlement/supplement check is inadvertently mailed to me in error, I hereby agree to notify *ROG Construction* immediately, and to endorse and deliver such check within forty-eight (48) hours of my receipt. Client agrees to fully cooperate with insurance company and comply with all post-loss duties required by the subject policy of insurance.

II. Equitable Lien on Insurance Proceeds

I further agree that in consideration of all "specified services" performed on my property, in lieu of immediate payment to Contractor, that an Equitable Lien is being placed on the insurance proceeds to be paid by the Insurance Company for the covered loss. Further, I do hereby appoint ROG Construction to accept on my behalf, any and all checks, drafts, bills of exchange, or other negotiable instruments pertaining to the work performed by the Contractor, and to endorse all such pertinent checks, drafts, bills of exchange for deposit to the Contractor's account for credit against the "specified services" on my property which have been completed or which will be completed.

III. Release of Information/Attorney Fees

I hereby unequivocally direct Insurance Company, Attorney, Mortgage Company, and any other entity that may receive insurance proceeds for the claim mentioned above, that I waive my privacy rights pertaining to this claim and specifically to the services provided by the Contractor. Further, I instruct the release of any and all information requested by ROG Construction pertaining to the claim. Additionally, the prevailing party shall be entitled to reimbursement for costs of collection, including reasonable attorney's fees and costs of unpaid amounts, for the breach, or enforcement, of any terms of this entire agreement.

IV. Notice Regarding Roof Claims

I hereby acknowledge that I have received notice that pursuant to Fla. Stat. § 489.197, that a contractor may not directly or indirectly engage in the offering to a residential property owner a rebate, gift, gift card, cash, coupon, waiver of any insurance deductible, or any other thing of value in exchange for: (1) allowing the contractor to conduct an inspection of the residential property owner's roof; or (2) making an insurance claim for damage to the residential property owner's roof. I also acknowledge that I have received a good faith estimate of the itemized and detailed cost of services and materials for repairs undertaken pursuant to a property insurance claim and the estimate is attached and fully incorporated herein. I further consent that:

____ (client initials) I was not directly or indirectly offered any rebate, gift, gift card, cash, coupon, waiver of any insurance deductible, or any other thing of value in exchange for: (1) allowing the contractor to conduct an inspection of the residential property owner's roof; or for making an insurance claim for damage to the residential property owner's roof and

____ (client initials) I state that the Contractor and/or its representatives solely recommended that I contact my insurer and/or a qualified professional to determine if the repairs are covered under my insurance policy.

Client has read and understands the information above and have received a copy for my records.

This contract is intended to be legally binding and contains all the terms and conditions between the parties

Client 1 Signature: _____

Print Name: _____

Date: _____

Client 2 Signature: _____

Print Name: _____

Date: _____

Service Provider Representative Signature: _____

Print Name: _____

Date: _____

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Good Faith Itemized Per-Unit Cost Estimate:

This is merely an itemized per unit cost estimate and the Contractor reserves the right to supplement and/or amend the estimate upon receipt of upon additional information, research, and documentation. All up-to-date copy of the estimate/invoice shall be provided to the client.